



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB2957: driver license; enhanced; mobile; prohibition

FINK FLOOR AMENDMENT

1. Requires ADOT to issue a driver or nonoperating identification license not compliant with the Real ID Act only to a person whose state of domicile is this state and whose presence in the United States is authorized under federal law.
2. Restricts any information collected from a person when issuing a driver or nonoperating license from being accessible to, shared with or stored in any interstate, federal or international database system, including the state pointer exchange services, except for any valid purpose relating to the national law enforcement telecommunications system.
3. Makes a conforming change.

LUCA MOLDOVAN

2/20/2026

(602) 926-3848

ADDITIONAL COW
FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2957
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-101, Arizona Revised Statutes, is amended to
3 read:

4 28-101. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Alcohol" means any substance containing any form of alcohol,
7 including ethanol, methanol, propynol and isopropynol.

8 2. "Alcohol concentration" if expressed as a percentage means
9 either:

10 (a) The number of grams of alcohol per one hundred milliliters of
11 blood.

12 (b) The number of grams of alcohol per two hundred ten liters of
13 breath.

14 3. "All-terrain vehicle" means either of the following:

15 (a) A motor vehicle that satisfies all of the following:

16 (i) Is designed primarily for recreational nonhighway all-terrain
17 travel.

18 (ii) Is fifty or fewer inches in width.

19 (iii) Has an unladen weight of one thousand two hundred pounds or
20 less.

21 (iv) Travels on three or more nonhighway tires.

22 (v) Is operated on a public highway.

23 (b) A recreational off-highway vehicle that satisfies all of the
24 following:

25 (i) Is designed primarily for recreational nonhighway all-terrain
26 travel.

27 (ii) Is eighty or fewer inches in width.

- 1 (iii) Has an unladen weight of two thousand five hundred pounds or
2 less.
- 3 (iv) Travels on four or more nonhighway tires.
- 4 (v) Has a steering wheel for steering control.
- 5 (vi) Has a rollover protective structure.
- 6 (vii) Has an occupant retention system.
- 7 4. "Authorized emergency vehicle" means any of the following:
- 8 (a) A fire department vehicle.
- 9 (b) A police vehicle.
- 10 (c) An ambulance or emergency vehicle of a municipal department or
11 public service corporation that is designated or authorized by the
12 department or a local authority.
- 13 (d) Any other ambulance, fire truck or rescue vehicle that is
14 authorized by the department in its sole discretion and that meets
15 liability insurance requirements prescribed by the department.
- 16 5. "Autocycle" means a three-wheeled motorcycle on which the driver
17 and passengers ride in a fully or partially enclosed seating area that is
18 equipped with a roll cage, safety belts for each occupant and antilock
19 brakes and that is designed to be controlled with a steering wheel and
20 pedals.
- 21 6. "Automated driving system" means the hardware and software that
22 are collectively capable of performing the entire dynamic driving task on
23 a sustained basis, regardless of whether it is limited to a specific
24 operational design domain.
- 25 7. "Automotive recycler" means a person that is engaged in the
26 business of buying or acquiring a motor vehicle solely for the purpose of
27 dismantling, selling or otherwise disposing of the parts or accessories
28 and that removes parts for resale from six or more vehicles in a calendar
29 year.
- 30 8. "Autonomous vehicle" means a motor vehicle that is equipped with
31 an automated driving system.
- 32 9. "Aviation fuel" means all flammable liquids composed of a
33 mixture of selected hydrocarbons expressly manufactured and blended for
34 the purpose of effectively and efficiently operating an internal
35 combustion engine for use in an aircraft but does not include fuel for jet
36 or turbine powered aircraft.
- 37 10. "Bicycle" means a device, including a racing wheelchair, that
38 is propelled by human power and on which a person may ride and that has
39 either:
- 40 (a) Two tandem wheels, either of which is more than sixteen inches
41 in diameter.
- 42 (b) Three wheels in contact with the ground, any of which is more
43 than sixteen inches in diameter.
- 44 11. "Board" means the transportation board.
- 45 12. "Bus" means a motor vehicle designed for carrying sixteen or
46 more passengers, including the driver.

- 1 13. "Business district" means the territory contiguous to and
2 including a highway if there are buildings in use for business or
3 industrial purposes within any six hundred feet along the highway,
4 including hotels, banks or office buildings, railroad stations and public
5 buildings that occupy at least three hundred feet of frontage on one side
6 or three hundred feet collectively on both sides of the highway.
- 7 14. "Certificate of ownership" means a paper or an electronic
8 record that is issued in another state or a foreign jurisdiction and that
9 indicates ownership of a vehicle.
- 10 15. "Certificate of title" means a paper document or an electronic
11 record that is issued by the department and that indicates ownership of a
12 vehicle.
- 13 16. "Combination of vehicles" means a truck or truck tractor and
14 semitrailer and any trailer that it tows but does not include a forklift
15 designed for the purpose of loading or unloading the truck, trailer or
16 semitrailer.
- 17 17. "Controlled substance" means a substance so classified under
18 section 102(6) of the controlled substances act (21 United States Code
19 section 802(6)) and includes all substances listed in schedules I through
20 V of 21 Code of Federal Regulations part 1308.
- 21 18. "Conviction" means:
- 22 (a) An unvacated adjudication of guilt or a determination that a
23 person violated or failed to comply with the law in a court of original
24 jurisdiction or by an authorized administrative tribunal.
- 25 (b) An unvacated forfeiture of bail or collateral deposited to
26 secure the person's appearance in court.
- 27 (c) A plea of guilty or no contest accepted by the court.
- 28 (d) The payment of a fine or court costs.
- 29 19. "County highway" means a public road that is constructed and
30 maintained by a county.
- 31 20. "Dealer" means a person who is engaged in the business of
32 buying, selling or exchanging motor vehicles, trailers or semitrailers and
33 who has an established place of business and has paid fees pursuant to
34 section 28-4302.
- 35 21. "Department" means the department of transportation acting
36 directly or through its duly authorized officers and agents.
- 37 22. "Digital network or software application" has the same meaning
38 prescribed in section 28-9551.
- 39 23. "Director" means the director of the department of
40 transportation.
- 41 24. "Drive" means to operate or be in actual physical control of a
42 motor vehicle.
- 43 25. "Driver" means a person who drives or is in actual physical
44 control of a vehicle.
- 45 26. "Driver license" means a license that is issued by a state to
46 an individual and that authorizes the individual to drive a motor vehicle.
- 47 27. "Dynamic driving task":

- 1 (a) Means all of the real-time operational and tactical functions
2 required to operate a vehicle in on-road traffic.
- 3 (b) Includes:
- 4 (i) Lateral vehicle motion control by steering.
- 5 (ii) Longitudinal motion control by acceleration and deceleration.
- 6 (iii) Monitoring the driving environment by object and event
7 detection, recognition, classification and response preparation.
- 8 (iv) Object and event response execution.
- 9 (v) Maneuver planning.
- 10 (vi) Enhancing conspicuity by lighting, signaling and gesturing.
- 11 (c) Does not include strategic functions such as trip scheduling
12 and selecting destinations and waypoints.
- 13 28. "Electric bicycle" means a bicycle or tricycle that is equipped
14 with fully operable pedals and an electric motor of less than seven
15 hundred fifty watts and that meets the requirements of one of the
16 following classes:
- 17 (a) "Class 1 electric bicycle" means a bicycle or tricycle that is
18 equipped with an electric motor that provides assistance only when the
19 rider is pedaling and that ceases to provide assistance when the bicycle
20 or tricycle reaches the speed of twenty miles per hour.
- 21 (b) "Class 2 electric bicycle" means a bicycle or tricycle that is
22 equipped with an electric motor that may be used exclusively to propel the
23 bicycle or tricycle and that is not capable of providing assistance when
24 the bicycle or tricycle reaches the speed of twenty miles per hour.
- 25 (c) "Class 3 electric bicycle" means a bicycle or tricycle that is
26 equipped with an electric motor that provides assistance only when the
27 rider is pedaling and that ceases to provide assistance when the bicycle
28 or tricycle reaches the speed of twenty-eight miles per hour.
- 29 29. "Electric miniature scooter" means a device that:
- 30 (a) Weighs less than thirty pounds.
- 31 (b) Has two or three wheels.
- 32 (c) Has handlebars.
- 33 (d) Has a floorboard on which a person may stand while riding.
- 34 (e) Is powered by an electric motor or human power, or both.
- 35 (f) Has a maximum speed that does not exceed ten miles per hour,
36 with or without human propulsion, on a paved level surface.
- 37 30. "Electric personal assistive mobility device" means a
38 self-balancing device with one wheel or two nontandem wheels and an
39 electric propulsion system that limits the maximum speed of the device to
40 fifteen miles per hour or less and that is designed to transport only one
41 person.
- 42 31. "Electric standup scooter":
- 43 (a) Means a device that:
- 44 (i) Weighs less than seventy-five pounds.
- 45 (ii) Has two or three wheels.
- 46 (iii) Has handlebars.
- 47 (iv) Has a floorboard on which a person may stand while riding.

1 (v) Is powered by an electric motor or human power, or both.
2 (vi) Has a maximum speed that does not exceed twenty miles per
3 hour, with or without human propulsion, on a paved level surface.
4 (b) Does not include an electric miniature scooter.
5 32. "Evidence" includes both of the following:
6 (a) A display on a wireless communication device of a
7 department-generated ~~driver license, nonoperating identification license,~~
8 vehicle registration card or other official record of the department that
9 is presented to a law enforcement officer or in a court or an
10 administrative proceeding.
11 (b) An electronic or digital license plate authorized pursuant to
12 section 28-364.
13 33. "Farm" means any lands primarily used for agriculture
14 production.
15 34. "Farm tractor" means a motor vehicle designed and used
16 primarily as a farm implement for drawing implements of husbandry.
17 35. "Foreign vehicle" means a motor vehicle, trailer or semitrailer
18 that is brought into this state other than in the ordinary course of
19 business by or through a manufacturer or dealer and that has not been
20 registered in this state.
21 36. "Fully autonomous vehicle" means an autonomous vehicle that is
22 equipped with an automated driving system designed to function as a level
23 four or five system under SAE J3016 and that may be designed to function
24 either:
25 (a) Solely by use of the automated driving system.
26 (b) By a human driver when the automated driving system is not
27 engaged.
28 37. "Golf cart" means a motor vehicle that has not less than three
29 wheels in contact with the ground, that has an unladen weight of less than
30 one thousand eight hundred pounds, that is designed to be and is operated
31 at not more than twenty-five miles per hour and that is designed to carry
32 not more than four persons including the driver.
33 38. "Gross combined weight rating" means the sum of the gross
34 vehicle weight rating of a motor vehicle and the trailer or semitrailer
35 the motor vehicle tows.
36 39. "Gross vehicle weight rating" means the weight that is assigned
37 by the motor vehicle manufacturer to a motor vehicle and that represents
38 the maximum recommended total weight, including the vehicle and the load
39 for the vehicle.
40 40. "Hazardous material" means a material, and its mixtures or
41 solutions, that the United States department of transportation determines
42 under 49 Code of Federal Regulations is, or any quantity of a material
43 listed as a select agent or toxin under 42 Code of Federal Regulations
44 part 73 that is, capable of posing an unreasonable risk to health, safety
45 and property if transported in commerce and that is required to be
46 placarded or marked as required by the department's safety rules
47 prescribed pursuant to chapter 14 of this title.

1 41. "Human driver" means a natural person in the vehicle who
2 performs in real time all or part of the dynamic driving task or who
3 achieves a minimal risk condition for the vehicle.

4 42. "Implement of husbandry" means a vehicle that is designed
5 primarily for agricultural purposes and that is used exclusively in the
6 conduct of agricultural operations, including an implement or vehicle that
7 uses an automated driving system or that is autonomous or that is
8 self-propelled or otherwise, whether operated manually, equipped with an
9 automated driving system that is not in use or equipped with an automated
10 driving system that is in use, and that meets both of the following
11 conditions:

12 (a) Is used solely for agricultural purposes, including the
13 preparation or harvesting of cotton, alfalfa, grains, specialty crops and
14 other farm crops. For the purposes of this subdivision, "specialty crops"
15 includes fruits, vegetables, tree nuts, dried fruits and horticulture and
16 nursery crops, including floriculture.

17 (b) Is only incidentally operated or moved on a highway whether as
18 a trailer or an autonomous vehicle or a self-propelled unit. For the
19 purposes of this subdivision, "incidentally operated or moved on a
20 highway" means travel between a farm and another part of the same farm,
21 from one farm to another farm or between a farm and a place of repair,
22 supply or storage.

23 43. "Limousine" means a motor vehicle providing prearranged ground
24 transportation service for an individual passenger, or a group of
25 passengers, that is arranged in advance or is operated on a regular route
26 or between specified points and includes ground transportation under a
27 contract or agreement for services that includes a fixed rate or time and
28 is provided in a motor vehicle with a seating capacity not exceeding
29 fifteen passengers including the driver.

30 44. "Livery vehicle" means a motor vehicle that:

31 (a) Has a seating capacity not exceeding fifteen passengers
32 including the driver.

33 (b) Provides passenger services for a fare determined by a flat
34 rate or flat hourly rate between geographic zones or within a geographic
35 area.

36 (c) Is available for hire on an exclusive or shared ride basis.

37 (d) May do any of the following:

38 (i) Operate on a regular route or between specified places.

39 (ii) Offer prearranged ground transportation service as defined in
40 section 28-141.

41 (iii) Offer on demand ground transportation service pursuant to a
42 contract with a public airport, licensed business entity or organization.

43 45. "Local authority" means any county, municipal or other local
44 board or body exercising jurisdiction over highways under the constitution
45 and laws of this state.

46 46. "Manufacturer" means a person engaged in the business of
47 manufacturing motor vehicles, trailers or semitrailers.

1 47. "Minimal risk condition":

2 (a) Means a condition to which a human driver or an automated
3 driving system may bring a vehicle in order to reduce the risk of a crash
4 when a given trip cannot or should not be completed.

5 (b) Includes bringing the vehicle to a complete stop.

6 48. "Moped" means a bicycle, not including an electric bicycle, an
7 electric miniature scooter or an electric standup scooter, that is
8 equipped with a helper motor if the vehicle has a maximum piston
9 displacement of fifty cubic centimeters or less, a brake horsepower of one
10 and one-half or less and a maximum speed of twenty-five miles per hour or
11 less on a flat surface with less than a one percent grade.

12 49. "Motorcycle" means a motor vehicle that has a seat or saddle
13 for the use of the rider and that is designed to travel on not more than
14 three wheels in contact with the ground but excludes a tractor, an
15 electric bicycle, an electric miniature scooter, an electric standup
16 scooter and a moped.

17 50. "Motor driven cycle" means a motorcycle, including every motor
18 scooter, with a motor that produces not more than five horsepower but does
19 not include an electric bicycle, an electric miniature scooter or an
20 electric standup scooter.

21 51. "Motorized quadricycle" means a self-propelled motor vehicle to
22 which all of the following apply:

23 (a) The vehicle is self-propelled by an emission-free electric
24 motor and may include pedals operated by the passengers.

25 (b) The vehicle has at least four wheels in contact with the
26 ground.

27 (c) The vehicle seats at least eight passengers, including the
28 driver.

29 (d) The vehicle is operable on a flat surface using solely the
30 electric motor without assistance from the pedals or passengers.

31 (e) The vehicle is a commercial motor vehicle as defined in section
32 28-5201.

33 (f) The vehicle is a limousine operating under a vehicle for hire
34 company permit issued pursuant to section 28-9503.

35 (g) The vehicle is manufactured by a motor vehicle manufacturer
36 that is licensed pursuant to chapter 10 of this title.

37 (h) The vehicle complies with the definition and standards for
38 low-speed vehicles set forth in 49 Code of Federal Regulations sections
39 571.3(b) and 571.500, respectively.

40 52. "Motor vehicle":

41 (a) Means either:

42 (i) A self-propelled vehicle.

43 (ii) For the purposes of the laws relating to the imposition of a
44 tax on motor vehicle fuel, a vehicle that is operated on the highways of
45 this state and that is propelled by the use of motor vehicle fuel.

46 (b) Does not include a scrap vehicle, a personal delivery device, a
47 personal mobile cargo carrying device, a motorized wheelchair, an electric

1 personal assistive mobility device, an electric bicycle, an electric
2 miniature scooter, an electric standup scooter or a motorized skateboard.
3 For the purposes of this subdivision:

4 (i) "Motorized skateboard" means a self-propelled device that does
5 not have handlebars and that has a motor, a deck on which a person may
6 ride and at least two tandem wheels in contact with the ground.

7 (ii) "Motorized wheelchair" means a self-propelled wheelchair that
8 is used by a person for mobility.

9 53. "Motor vehicle fuel" includes all products that are commonly or
10 commercially known or sold as gasoline, including casinghead gasoline,
11 natural gasoline and all flammable liquids, and that are composed of a
12 mixture of selected hydrocarbons expressly manufactured and blended for
13 the purpose of effectively and efficiently operating internal combustion
14 engines. Motor vehicle fuel does not include inflammable liquids that are
15 specifically manufactured for racing motor vehicles and that are
16 distributed for and used by racing motor vehicles at a racetrack, use fuel
17 as defined in section 28-5601, aviation fuel, fuel for jet or turbine
18 powered aircraft or the mixture created at the interface of two different
19 substances being transported through a pipeline, commonly known as
20 transmix.

21 54. "Neighborhood electric shuttle":

22 (a) Means a self-propelled electrically powered motor vehicle to
23 which all of the following apply:

24 (i) The vehicle is emission free.

25 (ii) The vehicle has at least four wheels in contact with the
26 ground.

27 (iii) The vehicle is capable of transporting at least eight
28 passengers, including the driver.

29 (iv) The vehicle is a commercial motor vehicle as defined in
30 section 28-5201.

31 (v) The vehicle is a vehicle for hire as defined in section 28-9501
32 and operates under a vehicle for hire company permit issued pursuant to
33 section 28-9503.

34 (vi) The vehicle complies with the definition and standards for
35 low-speed vehicles set forth in 49 Code of Federal Regulations sections
36 571.3(b) and 571.500, respectively.

37 (b) Includes a vehicle that meets the standards prescribed in
38 subdivision (a) of this paragraph and that has been modified after market
39 and not by the manufacturer to transport up to fifteen passengers,
40 including the driver.

41 55. "Neighborhood electric vehicle" means a self-propelled
42 electrically powered motor vehicle to which all of the following apply:

43 (a) The vehicle is emission free.

44 (b) The vehicle has at least four wheels in contact with the
45 ground.

1 (c) The vehicle complies with the definition and standards for
2 low-speed vehicles, unless excepted or exempted under federal law, set
3 forth in 49 Code of Federal Regulations sections 571.3(b) and 571.500,
4 respectively.

5 56. "Neighborhood occupantless electric vehicle" means a
6 neighborhood electric vehicle that is not designed, intended or marketed
7 for human occupancy.

8 57. "Nonresident" means a person who is not a resident of this
9 state as defined in section 28-2001.

10 58. "Off-road recreational motor vehicle" means a motor vehicle
11 that is designed primarily for recreational nonhighway all-terrain travel
12 and that is not operated on a public highway. Off-road recreational motor
13 vehicle does not mean a motor vehicle used for construction, building
14 trade, mining or agricultural purposes.

15 59. "Operational design domain":

16 (a) Means operating conditions under which a given automated
17 driving system is specifically designed to function.

18 (b) Includes roadway types, speed range, environmental conditions,
19 such as weather or time of day, and other domain constraints.

20 60. "Operator" means a person who drives a motor vehicle on a
21 highway, who is in actual physical control of a motor vehicle on a highway
22 or who is exercising control over or steering a vehicle being towed by a
23 motor vehicle.

24 61. "Owner" means:

25 (a) A person who holds the legal title of a vehicle.

26 (b) If a vehicle is the subject of an agreement for the conditional
27 sale or lease with the right of purchase on performance of the conditions
28 stated in the agreement and with an immediate right of possession vested
29 in the conditional vendee or lessee, the conditional vendee or lessee.

30 (c) If a mortgagor of a vehicle is entitled to possession of the
31 vehicle, the mortgagor.

32 62. "Pedestrian" means any person afoot. A person who uses an
33 electric personal assistive mobility device or a manual or motorized
34 wheelchair is considered a pedestrian unless the manual wheelchair
35 qualifies as a bicycle. For the purposes of this paragraph, "motorized
36 wheelchair" means a self-propelled wheelchair that is used by a person for
37 mobility.

38 63. "Personal delivery device":

39 (a) Means a device that is both of the following:

40 (i) Manufactured for transporting cargo and goods in an area
41 described in section 28-1225.

42 (ii) Equipped with automated driving technology, including software
43 and hardware, that enables the operation of the device with the remote
44 support and supervision of a human.

45 (b) Does not include a personal mobile cargo carrying device.

46 64. "Personal mobile cargo carrying device" means an electronically
47 powered device that:

1 (a) Is operated primarily on sidewalks and within crosswalks and
2 that is designed to transport property.

3 (b) Weighs less than eighty pounds, excluding cargo.

4 (c) Operates at a maximum speed of twelve miles per hour.

5 (d) Is equipped with technology to transport personal property with
6 the active monitoring of a property owner and that is primarily designed
7 to remain within twenty-five feet of the property owner.

8 (e) Is equipped with a braking system that when active or engaged
9 enables the personal mobile cargo carrying device to come to a controlled
10 stop.

11 65. "Power sweeper" means an implement, with or without motive
12 power, that is only incidentally operated or moved on a street or highway
13 and that is designed for the removal of debris, dirt, gravel, litter or
14 sand whether by broom, vacuum or regenerative air system from asphaltic
15 concrete or cement concrete surfaces, including parking lots, highways,
16 streets and warehouses, and a vehicle on which the implement is
17 permanently mounted.

18 66. "Public transit" means the transportation of passengers on
19 scheduled routes by means of a conveyance on an individual passenger
20 fare-paying basis excluding transportation by a sightseeing bus, school
21 bus or taxi or a vehicle not operated on a scheduled route basis.

22 67. "Reconstructed vehicle" means a vehicle that has been assembled
23 or constructed largely by means of essential parts, new or used, derived
24 from vehicles or makes of vehicles of various names, models and types or
25 that, if originally otherwise constructed, has been materially altered by
26 the removal of essential parts or by the addition or substitution of
27 essential parts, new or used, derived from other vehicles or makes of
28 vehicles. For the purposes of this paragraph, "essential parts" means
29 integral and body parts, the removal, alteration or substitution of which
30 will tend to conceal the identity or substantially alter the appearance of
31 the vehicle.

32 68. "Residence district" means the territory contiguous to and
33 including a highway not comprising a business district if the property on
34 the highway for a distance of three hundred feet or more is in the main
35 improved with residences or residences and buildings in use for business.

36 69. "Right-of-way" when used within the context of the regulation
37 of the movement of traffic on a highway means the privilege of the
38 immediate use of the highway. Right-of-way when used within the context
39 of the real property on which transportation facilities and appurtenances
40 to the facilities are constructed or maintained means the lands or
41 interest in lands within the right-of-way boundaries.

42 70. "SAE J3016" means surface transportation recommended practice
43 J3016 taxonomy and definitions for terms related to driving automation
44 systems for on-road motor vehicles published by SAE international in June
45 2018.

46 71. "School bus" means a motor vehicle that is designed for
47 carrying more than ten passengers and that is either:

1 (a) Owned by any public or governmental agency or other institution
2 and operated for the transportation of children to or from home or school
3 on a regularly scheduled basis.

4 (b) Privately owned and operated for compensation for the
5 transportation of children to or from home or school on a regularly
6 scheduled basis.

7 72. "Scrap metal dealer" has the same meaning prescribed in section
8 44-1641.

9 73. "Scrap vehicle" has the same meaning prescribed in section
10 44-1641.

11 74. "Semitrailer" means a vehicle that is with or without motive
12 power, other than a pole trailer or single-axle tow dolly, that is
13 designed for carrying persons or property and for being drawn by a motor
14 vehicle and that is constructed so that some part of its weight and that
15 of its load rests on or is carried by another vehicle. For the purposes of
16 this paragraph, "pole trailer" has the same meaning prescribed in section
17 28-601.

18 75. "Single-axle tow dolly" means a nonvehicle device that is drawn
19 by a motor vehicle, that is designed and used exclusively to transport
20 another motor vehicle and on which the front or rear wheels of the drawn
21 motor vehicle are mounted on the tow dolly while the other wheels of the
22 drawn motor vehicle remain in contact with the ground.

23 76. "State" means a state of the United States and the District of
24 Columbia.

25 77. "State highway" means a state route or portion of a state route
26 that is accepted and designated by the board as a state highway and that
27 is maintained by the state.

28 78. "State route" means a right-of-way whether actually used as a
29 highway or not that is designated by the board as a location for the
30 construction of a state highway.

31 79. "Street" or "highway" means the entire width between the
32 boundary lines of every way if a part of the way is open to the use of the
33 public for purposes of vehicular travel.

34 80. "Taxi" means a motor vehicle that has a seating capacity not
35 exceeding fifteen passengers, including the driver, that provides
36 passenger services and that:

37 (a) Does not primarily operate on a regular route or between
38 specified places.

39 (b) Offers local transportation for a fare determined on the basis
40 of the distance traveled or prearranged ground transportation service as
41 defined in section 28-141 for a predetermined fare.

42 81. "Title transfer form" means a paper or an electronic form that
43 is prescribed by the department for the purpose of transferring a
44 certificate of title from one owner to another owner.

1 82. "Traffic survival school" means a school that is licensed
2 pursuant to chapter 8, article 7.1 of this title and that offers
3 educational sessions that are designed to improve the safety and habits of
4 drivers and that are approved by the department.

5 83. "Trailer" means a vehicle that is with or without motive power,
6 other than a pole trailer or single-axle tow dolly, that is designed for
7 carrying persons or property and for being drawn by a motor vehicle and
8 that is constructed so that no part of its weight rests on the towing
9 vehicle. A semitrailer equipped with an auxiliary front axle commonly
10 known as a dolly is deemed to be a trailer. For the purposes of this
11 paragraph, "pole trailer" has the same meaning prescribed in section
12 28-601.

13 84. "Transportation network company" has the same meaning
14 prescribed in section 28-9551.

15 85. "Transportation network company vehicle" has the same meaning
16 prescribed in section 28-9551.

17 86. "Transportation network service" has the same meaning
18 prescribed in section 28-9551.

19 87. "Truck" means a motor vehicle designed or used primarily for
20 the carrying of property other than the effects of the driver or
21 passengers and includes a motor vehicle to which has been added a box, a
22 platform or other equipment for such carrying.

23 88. "Truck tractor" means a motor vehicle that is designed and used
24 primarily for drawing other vehicles and that is not constructed to carry
25 a load other than a part of the weight of the vehicle and load drawn.

26 89. "Vehicle":

27 (a) Means a device in, on or by which a person or property is or
28 may be transported or drawn on a public highway.

29 (b) Does not include:

30 (i) Electric bicycles, electric miniature scooters, electric
31 standup scooters and devices moved by human power.

32 (ii) Devices used exclusively on stationary rails or tracks.

33 (iii) Personal delivery devices.

34 (iv) Scrap vehicles.

35 (v) Personal mobile cargo carrying devices.

36 90. "Vehicle transporter" means either:

37 (a) A truck tractor capable of carrying a load and drawing a
38 semitrailer.

39 (b) A truck tractor with a stinger-steered fifth wheel capable of
40 carrying a load and drawing a semitrailer or a truck tractor with a dolly
41 mounted fifth wheel that is securely fastened to the truck tractor at two
42 or more points and that is capable of carrying a load and drawing a
43 semitrailer.

1 Sec. 2. Section 28-338, Arizona Revised Statutes, is amended to
2 read:

3 28-338. Enhanced driver license prohibition

4 A. This state shall not participate in the implementation of OR
5 REQUIRE A PERSON TO PARTICIPATE IN an enhanced driver license program to
6 satisfy the requirements of the federal western hemisphere travel
7 initiative or the REAL ID act of 2005 (P.L. 109-13, division B; 119 Stat.
8 302). The department shall not implement OR REQUIRE A PERSON TO
9 PARTICIPATE IN an enhanced driver license program and shall report to the
10 governor and the legislature any attempt by agencies or agents of the
11 United States department of homeland security to secure the implementation
12 of an enhanced driver license program through the operations of the United
13 States department of homeland security.

14 B. THE DEPARTMENT SHALL CONTINUE TO MAKE AVAILABLE A DRIVER LICENSE
15 AND NONOPERATING IDENTIFICATION LICENSE PURSUANT TO CHAPTER 8, ARTICLE 4
16 OF THIS TITLE THAT ARE NOT COMPLIANT WITH THE REAL ID ACT OF 2005 AND ANY
17 SUBSEQUENT AMENDMENTS. [THE DEPARTMENT SHALL ISSUE A DRIVER LICENSE OR
18 NONOPERATING IDENTIFICATION LICENSE THAT IS NOT COMPLIANT WITH THE REAL ID
19 ACT OF 2005 ONLY TO A PERSON WHOSE STATE OF DOMICILE IS THIS STATE AND
20 WHOSE PRESENCE IN THE UNITED STATES IS AUTHORIZED UNDER FEDERAL
21 LAW.] SUCH A DRIVER LICENSE AND NONOPERATING IDENTIFICATION LICENSE SHALL
22 BE MARKED "NOT FOR REAL ID ACT PURPOSES".

23 C. THE DEPARTMENT SHALL NOT COLLECT, CAPTURE, STORE OR USE ANY
24 BIOMETRIC IDENTIFIERS, INCLUDING BIOMETRIC FACIAL IMAGE DATA CONSISTENT
25 WITH THE REAL ID ACT'S IMPLEMENTING REGULATION REQUIRING COMPLIANCE WITH,
26 INTERNATIONAL STANDARDS FOR BIOMETRIC DATA INTERCHANGE FORMATS OR ANY
27 SUCCESSOR STANDARD, IN CONNECTION WITH ISSUING A DRIVER LICENSE OR
28 NONOPERATING IDENTIFICATION LICENSE PURSUANT TO SUBSECTION B OF THIS
29 SECTION. FOR THE PURPOSES OF THIS SUBSECTION, "BIOMETRIC IDENTIFIERS"
30 INCLUDES FACIAL RECOGNITION DATA, IRIS SCANS, FINGERPRINTS, VOICEPRINTS OR
31 ANY MEASURABLE BIOLOGICAL OR BEHAVIORAL CHARACTERISTICS USED FOR AUTOMATED
32 RECOGNITION OF AN INDIVIDUAL.

33 D. THE DEPARTMENT SHALL NOT RETAIN ANY COPIES OF ORIGINAL OR
34 SECONDARY SOURCE DOCUMENTS USED TO VERIFY A PERSON'S IDENTITY WHEN ISSUING
35 A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE.

36 [E. EXCEPT FOR ANY VALID PURPOSE RELATING TO THE NATIONAL LAW
37 ENFORCEMENT TELECOMMUNICATIONS SYSTEM, ANY INFORMATION COLLECTED FROM A
38 PERSON WHEN ISSUING A DRIVER LICENSE OR NONOPERATING IDENTIFICATION
39 LICENSE PURSUANT TO SUBSECTION B OF THIS SECTION SHALL NOT BE ACCESSIBLE
40 TO, SHARED WITH OR STORED IN ANY INTERSTATE, FEDERAL OR INTERNATIONAL
41 DATABASE SYSTEM, INCLUDING THE STATE POINTER EXCHANGE SERVICES.]

42 ~~[F.]~~ [F.] THE DEPARTMENT SHALL ENSURE THAT EACH PERSON WHO APPLIES
43 FOR A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE IS INFORMED
44 BOTH VERBALLY AND IN WRITING THAT THE PERSON MAY CHOOSE TO BE ISSUED
45 EITHER A DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE THAT IS
46 REAL ID-COMPLIANT OR ISSUED PURSUANT TO SUBSECTION B OF THIS SECTION. ANY
47 SIGN, DISPLAY, BROCHURE, ELECTRONIC INTERFACE OR PUBLIC COMMUNICATION IN

1 THIS STATE THAT DESCRIBES OR PROMOTES THE REAL ID ACT OF 2005 SHALL
2 CLEARLY STATE THAT USING A DRIVER LICENSE OR NONOPERATING IDENTIFICATION
3 LICENSE THAT IS REAL ID-COMPLIANT IS VOLUNTARY AND THAT A DRIVER LICENSE
4 OR NONOPERATING IDENTIFICATION LICENSE THAT IS NOT COMPLIANT WITH THE REAL
5 ID ACT OF 2005 IS AVAILABLE AS AN ALTERNATIVE. A DRIVER LICENSE OR
6 NONOPERATING IDENTIFICATION LICENSE APPLICANT SHALL BE GIVEN A LIST OF THE
7 TRANSPORTATION SECURITY ADMINISTRATION'S CURRENTLY ACCEPTABLE FORMS OF
8 IDENTIFICATION.

9 Sec. 3. Title 28, chapter 2, article 2, Arizona Revised Statutes,
10 is amended by adding section 28-340, to read:

11 28-340. Digital or mobile driver license; prohibited
12 acceptance

13 A CITY, TOWN OR COUNTY OR THIS STATE SHALL NOT REQUIRE THE USE OF A
14 DIGITAL OR MOBILE DRIVER LICENSE OR A DIGITAL OR MOBILE NONOPERATING
15 IDENTIFICATION LICENSE FOR IDENTIFICATION PURPOSES FOR ANY GOVERNMENT
16 SERVICE OR PURPOSE. A PHYSICAL DRIVER LICENSE OR NONOPERATING
17 IDENTIFICATION LICENSE SHALL BE ACCEPTED FOR ALL IDENTIFICATION PURPOSES
18 IN THIS STATE.

19 Sec. 4. Section 28-364, Arizona Revised Statutes, is amended to
20 read:

21 28-364. Powers of the director

22 A. The director may provide technical transportation planning
23 expertise to local governments when requested, coordinate local government
24 transportation planning with regional and state transportation planning
25 and guide local transportation planning to ensure compliance with federal
26 requirements. The planning authority granted by this subsection does not
27 preempt planning responsibilities and decisions of local governments.

28 B. If the governor declares a state of emergency, the director may
29 contract and do all things necessary to provide emergency transportation
30 services for the residents in the affected areas whether the emergency
31 transportation is by street, rail or air.

32 C. On a determination that it is in this state's best interest, the
33 director may authorize payment for necessary relocation costs in advance
34 of work being performed if an existing facility owned by the United States
35 must be relocated or adjusted due to construction, modification or
36 improvement of a state highway. The director shall base each advance
37 payment on an estimate of cost of the proposed relocation or adjustment
38 prepared by the federal government and acceptable to the director and
39 shall base the final compensation on the actual agreed cost.

40 D. The director of the department of transportation in consultation
41 with the director of the department of public safety shall develop
42 procedures to exchange information for any purpose related to sections
43 28-1324, 28-1325, 28-1326, 28-1462 and 28-3318.

1 E. The director may establish a system or process that does all of
2 the following:

3 1. Allows for mailing notices of service or other legal documents
4 or records of the department electronically or digitally to a person who
5 consents to receiving these notices, documents or records through a secure
6 electronic or digital system.

7 2. Enables a person to establish a financial account in the
8 department's database. The account shall be accessible by the person or
9 the person's authorized representative to review statements of all
10 transactions associated with the person's account and to make prepayments
11 or payments for authorized transactions with the department.
12 Notwithstanding any other law, monies in financial accounts established
13 pursuant to this section that remain unexpended for a period of five years
14 or more revert to the Arizona highway user revenue fund and shall be
15 distributed pursuant to section 28-6538.

16 3. Allows a person to comply with the photograph update and proof
17 of vision test requirements prescribed by section 28-3173 through
18 electronic or digital means that meet the department's standards.

19 4. Enables the department to accept certificate of title brands
20 from other states or jurisdictions and to record these brands on the
21 appropriate vehicle records.

22 F. The director, in consultation with the Arizona medical board or
23 the state board of optometry, may do all of the following:

24 1. Establish medical and vision standards for driver license
25 applicants and examinations.

26 2. Establish courses of training, training facilities and
27 qualifications and methods of training for driver license examining
28 personnel.

29 3. Establish procedures for the certification of driver license
30 examining personnel and driver license instructors personnel.

31 4. Direct research in the field of licensing drivers. The director
32 may accept public or private grants for the research.

33 5. Conduct research in the field of examination or reexamination of
34 licensing individual drivers with medical or vision problems.

35 6. Set minimum vision standards for the operation of a motor
36 vehicle in this state.

37 G. The director may implement electronic or digital versions of
38 ~~driver licenses, nonoperating identification licenses,~~ vehicle
39 registration cards, license plates or other official records of the
40 department.

41 Sec. 5. Conditional repeal; notice

42 A. Section 28-3175, Arizona Revised Statutes, is repealed and the
43 department shall immediately rescind all compliance measures with the REAL
44 ID act of 2005 (P.L. 109-13, division B; 119 Stat. 302) and cease to issue
45 REAL ID-compliant driver licenses or nonoperating identification licenses
46 as of the date any of the following occur:

47 1. Division B of the REAL ID act of 2025 is repealed.

1 2. The definition of official purpose in the REAL ID driver's
2 licenses and identification cards (6 Code of Federal Regulations part 37)
3 is modified.

4 3. Federal laws or rules are changed to prohibit state issuance of
5 non-REAL ID-compliant driver licenses or nonoperating identification
6 licenses.

7 B. The department of transportation shall notify the director of
8 the Arizona legislative council in writing of this date.

9 Enroll and engross to conform

10 Amend title to conform

LISA FINK

2957FloorFINK.docx

02/20/2026

2:01 PM

C: JR

130CVCKSR